

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC ET AL.,
RESPONDENTS.

**COMPLAINANT’S MOTION
TO MODIFY THE SCHEDULING ORDER**

Pursuant to 46 C.F.R. §§ 502.61(d) and 502.69(a), Complainant TPG Pressure, Inc. (“Complainant”), through undersigned counsel, hereby respectfully requests that the Presiding Officer extend the current deadlines in the Revised Scheduling Order, served on August 2, 2023, by less than two months. Pursuant to 46 C.F.R. § 502.71(a), on October 6, 2023, Complainant reached out to counsel for Omni Logistics, LLC and Epic Freight Solutions, LLC (“Respondents”) to confer about the sought extension, and Respondents responded that they would not consent to the requested extension.

INTRODUCTION

In support of this Motion, as set forth below, despite parties’ diligent efforts to meet the existing deadlines, good cause exists for this motion because, among other things: (1) the case concerns 227 containers (Am. Verified Compl. at 31) and over 100,000 pages of production that Complainant is meticulously working to organize for each container; (3) both parties continue to face a significant challenge due to scheduling conflicts and the upcoming holiday period that make it impossible as a practical matter to meet the current deadlines; and (4) Complainant seeks a

reasonable extension of the Revised Scheduling Order and the time for initial decision in light of the various issues presented in the case, the volume of documents produced, and the amount in controversy. While Complainant understands and appreciates the Presiding Officer's admonition that a "scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril," Complainant respectfully submits that it has not cavalierly disregarded the Presiding Officer's Scheduling Order and the instant Motion is supported by good cause.

I. The Parties Have Diligently Engaged in Written Discovery, Document Production, and Depositions.

Complainant issued its first discovery requests on May 16, 2023. Respondents issued their first discovery requests on May 22, 2023. The parties timely responded and objected to each other's written discovery requests, with the understanding that each party's document production would be substantially complete by June 30, 2023, as required by the initial Scheduling Order. The parties each produced their initial production on July 7, 2023. Each party then made a subsequent production the following week. Respondents requested that Complainant redo the production in a different format to facilitate the review, to which Complainant agreed, allowing Respondents to begin their actual review on July 14, 2023. The parties requested additional documents, and requests were narrowed as a result of negotiations between counsel. Respondents accordingly produced additional documents on July 14, 2023. On August 1, 2023, the parties jointly requested an extension of the deadlines of less than 2 months, which was granted. Judge Wirth issued the Revised Scheduling Order on August 2, 2023, and on August 7, 2023, Respondents made an additional production (totaling over 5,330 documents; more than 26,000 pages). Overall, Respondents produced over 10,589 documents, totaling 60,376 pages, not

including production made today; and Complainant produced 5,805 documents, totaling 45,459 pages.

Further, the parties timely conducted depositions on September 14, 15, 28, and 29. The parties worked very hard to limit depositions to two days each and stay within the window set out in the Revised Scheduling Order. However, the depositions on September 28 and 29 revealed additional documents that Complainant requested from Respondents, and which have not yet been produced.

II. Complainant Is Diligently Working to Organize the Evidence for Each of the 227 Containers.

With the number of containers (227) and documents (well over 100,000) in play, Complainant is diligently working to set out the information concerning each container in a manner that will facilitate the review by the Administrative Judge and the Commission. For example, not all documents relevant to each container include the container number or other identifying information, and not all documentation for each container includes the same kinds of documents. As a result, this process is taking longer than anticipated to complete. Due to the complications and time constraints, Complainant engaged an independent auditor on August 1, 2023, to assist in a more economical and timely fashion; however, the auditor needs additional time to complete the analysis. In addition, the additional documents that Respondents need to produce, need to be reviewed and analyzed for the purposes of presentation in this proceeding.

III. Counsel for Complainant Requires Additional Time in Order to Analyze the Discovery Obtained to Date and for Respondents to Produce Outstanding Discovery.

Despite the diligence and best efforts of Complainant and its counsel, Complainant is unable to adequately develop facts of the case by November 17, 2023, which requires analysis of tens of thousands of pages of documents, complete expert discovery, and any additional discovery that may prove necessary. That deadline is untenable in light of Respondents' incomplete

document production, the volume of documents already produced, and other obligations of the parties and their counsel. Complainant is unable to commence (let alone complete) expert discovery until the completion of fact discovery. For instance, just before this motion was filed, Respondents produced another batch of documents, which requires review.

On September 19, 2023, the parties discussed a potential extension of Respondents' briefing deadlines due to the holidays (Respondents' Reply currently falls on December 29, 2023), but due to developments since, Complainant has concluded that an extension of all deadlines is necessary for the foregoing reasons. As noted above, Complainant's counsel reached out to Respondents' counsel who responded that they oppose the dates proposed by Complainant. As detailed above, however, Complainant needs the additional time it is respectfully requesting.

ARGUMENT

The Commission may extend the date by which the initial decision and the final Commission decision will be issued "for good cause shown." 46 C.F.R. § 502.61(d). Commission precedent supports allowing sufficient time for a full development of the evidentiary record even if that relaxes adherence to a particular schedule. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (the policy and responsibility of Commission is to ensure that justice is served, and all relevant facts are considered by the Commission).

In light of the difficulties identified above, for good cause, Complainant seeks a reasonable and modest extension of less than 60 days. Complainant proposes that the dates in the Revised Scheduling Order be amended as follows:

<u>Remaining Deadlines</u>	<u>Current Date</u>	<u>Proposed New Date</u>
Disclosure of Complainant's expert reports.	October 6, 2023	December 8, 2023
Last day to serve written discovery requests.	October 25, 2023	December 15, 2023
Disclosure of Respondents' rebuttal expert reports.	October 27, 2023	January 5, 2024
Complete expert depositions.	November 17, 2023	January 19, 2024
Close of all discovery.	November 17, 2023	January 19, 2024
Complainant's brief, proposed findings of fact, and appendix.	December 8, 2023	February 19, 2024
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	December 29, 2023	March 20, 2024
Complainant's reply brief and responses to proposed findings of fact.	January 12, 2024	April 4, 2024

Complainant submits that these new proposed dates are reasonable under the circumstances.

CONCLUSION

For the reasons identified in this Motion, Complainant respectfully requests that the Commission extend the other remaining dates on the Scheduling Order as requested herein. Complainant's request is supported by good cause because of the substantial volume of documents that have been produced, the remaining documents that have not been produced, and the difficulty in preparing expert reports, scheduling expert depositions, and completing all discovery within the next month—by November 17, 2023—make meeting such a deadline practically impossible.

Dated: October 6, 2023

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on October 6, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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